**TOWN OF MOUNT PLEASANT, SOUTH CAROLINA**
**BOARD OF ZONING APPEALS**
**OCTOBER 30, 2023**
**MINUTES**

STAFF REPORT

Present: Megan Stevens, Vice-chair, Giles Branch, Aaron Butner, Molly Hall, Julian Hopkins, Elliott Barrow (arrived at 6:05 pm).
Absent: Stephen Wood (excused).
Staff: Chris Swalhah, James Ward, Seth Buckworth, Lynnette Lynes

Ms. Stevens called the meeting to order at 6 pm.

**A. Approval of Agenda**

*Ms. Hall moved for approval of the agenda. Mr. Branch seconded the motion. All in favor.*

**B. Approval of Minutes**

*Mr. Branch moved for approval of the minutes. Ms. Hall seconded the motion. All in favor.*

**C. Public Comment**
**D. General Correspondence**

There being no comments, Ms. Stevens closed public comment. All correspondence was linked to the agenda.

**E. Explanation of Procedures**
**F. Administration of Oath**

Ms. Stevens reviewed the procedures with the public and administered the oath to those speaking.

Mr. Barrow entered at this time (6:05 pm).

**G. Business**

**1. Case V-37-23, 653 Long Point Road, TMS #556-00-00-525. Request for relief from the strict application of §156.312(D)(1)(a)(2)(a) to allow a 23-foot encroachment into the required 50-foot buffer.**

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Richard Scott and Mr. Josh Malone reviewed the request with the Board.

- There being no comments, Ms. Stevens continued to Board questions.

Ms. Stevens closed public comment.

- *Mr. Butner moved for approval based on the findings there are extraordinary and exceptional conditions as approval of the variance will alleviate congestion to the site, the site will be more efficient and help expedite traffic from adjacent roadways, and will increase safety and efficiency for guests and team members. Mr. Branch seconded the motion. Motion passed on a 5 to 1 vote with Mr. Butner, Mr. Branch, Mr. Hopkins, Ms. Stevens and Ms. Hall in favor; Mr. Barrow opposed.*

**2. Case A-01-23, Lot 175 5th Avenue, TMS 514-10-00-056. Appeal of a zoning official's decision to cease the storage of boats on a residentially zoned vacant lot. Staff Position**

- Ms. Swalhah reviewed staff comments with the Board.

- Mr. John Clark, owner, and Mr. Jay Clark reviewed the request with the Board. Mr. John Clark asked if additional information could be submitted.

- *Mr. Branch moved for approval to submit additional information. Mr. Hopkins seconded the motion. All in favor.*

- Mr. John Clark, 174 5th Avenue, stated that his property is adjacent to the property in question. He stated that he helps maintain the property, is in the process of building a gate, and has a couple of boats stored on the property.

He stated that the property has been used for boat storage since 2008 with no complaints.

▶ Mr. Scott Williams, 132 Wando Reach Court, expressed concern that there are an increasing number of boats being stored on the property. He suggested that the boat storage is not in keeping with the neighborhood and a residential parcel.

▶ Ms. Deveta Richardson, 228 6th Avenue, suggested that the boat storage is increasing and it is a concern with the neighborhood. She stated that the property is at the beginning of the neighborhood. She suggested that this is not an appropriate use for the property. She stated that as a long-time resident of the neighborhood, she is concerned that the neighborhood is becoming more "commercial". She suggested that this property should be utilized as a residence and not a business.

▶ Ms. Jackie Gore, 308 6th Avenue, expressed concern with the boat storage and that it is not an acceptable use for a residential neighborhood. She stated that the neighborhood is one of the first settlement communities in Mount Pleasant. She suggested that the boat storage should be located on commercial property.

▶ Mr. John Clark rebutted to address the public comment and concerns. He suggested that storage of a few boats would not violate section 156.303(5). Mr. Jay Clark stated that the property is located near the boat landing and are only moved on a limited basis, so it would not cause a traffic concern.

Town staff provided rebuttal regarding residential zoning and boat storage.

Ms. Stevens moved to Board questions.

Ms. Stevens closed public comment.

▶ *Mr. Barrow moved to uphold the Zoning Administrator's decision based on the finding that there is not sufficient evidence to approve the reversal of the Zoning Administrator's decision. Mr. Hopkins seconded the motion. All in favor.*

**3. Case V-43-23, 1457 Hidden Bridge Drive, TMS #559-07-00-060. Request for relief from §156.303(Table) to allow an encroachment into the rear setback for the construction of a covered porch.**

- Ms. Swalhah reviewed staff comments with the Board.

- Mr. Forest Wieters and Mr. Bradley Punch reviewed the request with the Board.

- There being no comments, Ms. Stevens moved to Board questions.

- *Mr. Butner moved for approval of submittal of the HOA and neighborhood letters. Mr. Hopkins seconded the motion. All in favor.*

Mr. Punch noted that they do not have the letters from their neighbors available at the meeting.

- Ms. Stevens closed public comment.

- *Ms. Hall moved for approval based on the findings that criteria has been met because the location of the house on the property and already encroaching into the setback, the footprint is the same as existing and will only be enclosing the deck, and there is no detriment to the neighborhood. Mr. Butner seconded the motion. All in favor.*

**4. Case V-44-23, 964 Lansing Drive, TMS #517-03-00-011. Request for relief from the strict application of §156.111(A)(5) to allow the construction of a garage with a height of 19' 6''. The ordinance limits the heights of garages to 18'.**

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Hunter Baker, representative for the owner, reviewed the request with the Board.

- There being no comments, Ms. Stevens continued to Board questions.

- Ms. Stevens closed public comment.

- *Mr. Branch moved for deferral. Ms. Stevens seconded the motion. All in favor.*

**5. Case V-45-23, 142 Rose Lane, TMS #532-01-00-156. Request for relief from the strict application of §156.303(Table) to allow encroachments into the front, rear, and side setbacks and relief from §156.321(C)(2) to allow and impervious coverage of 41.8%.**

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Mary Hope Green, owner, reviewed the request with the Board.

- Ms. Linda Balzac, 422 Hobcaw Drive, stated that this is a small lot. She stated that they would like to keep the home simple.

There being no more comments, Ms. Stevens moved to Board questions.

Ms. Stevens closed public comment.

- *Mr. Branch moved for approval with the exception that the current front setback of 14.5 feet is maintained, based on the findings that the site half the size of a normal R-1 lot, it is not consistent with the Old Village area, and if not granted, the needed improvements could not be accomplished. Mr. Hopkins seconded the motion. Motion failed on a 3 to 3 vote with Mr. Branch, Mr. Hopkins, and Ms. Stevens in favor; Mr. Butner, Mr. Barrow, and Ms. Hall opposed.*

- *Mr. Barrow moved for approval based on the findings that all criteria has been met based, this is a unique property where conditions do not apply to other properties, and if denied it would prohibit the use of the property. Mr. Butner seconded the motion. Motion passed on a 4 to 2 vote with Mr. Butner, Mr. Barrow, Mr. Hopkins, and Ms. Hall in favor; Mr. Branch and Ms. Stevens opposed.*

6. **Case S-04-23, Lots B & C West Coleman Boulevard, TMS #5170600063/65. Request for Special Exception to allow the use of outdoor storage/display for the purpose of the storage and display of boats on the property. Related Correspondence**

- Mr. Swalhah reviewed staff comments with the Board and read the correspondence.

- *Mr. Butner moved for approval of submittal of additional information. Mr. Hopkins seconded the motion. All in favor.*

- Mr. Heath Hackett, owner, reviewed the request with the Board.

- Mr. Jason Corley, Pawley Road, stated that this would not be a boatyard, but would be for storage of the boats with view of the boats by appointment only.

There being no further comments, Ms. Steven moved to Board questions.

- Ms. Stevens closed public comment.

- *Mr. Branch moved for deferral for site plan revisions showing access and delineating structures. Mr. Hopkins seconded the motion. All in favor.*

## H. Approval of Final Orders

The Board signed final orders.

There being no further business, the meeting adjourned at 8:46 pm.

Submitted by,
L. Lynes
BOZA10302023